

1. Understanding the Constitution & Its Historical Background

Learning Outcomes

- Explain the meaning and purpose of a Constitution, and why one is necessary.
- Explain constitutionalism and its link to limited government.
- Trace the legislative history leading up to the Constitution and describe the working of the Constituent Assembly.
- Identify key personalities and recall the full constitution-making timeline, including the significance of 26 January.

Indian Constitution is the lengthiest written constitution in the world. The development of the Constitution in its present form has its roots in British rule.

A Constituent Assembly was formed in 1946 as suggested by M.N. Roy in 1934

Regulating Act of 1773

It was the first step taken by the British Government to control and regulate the affairs of the East India Company in India.

It made the Governor of Bengal as Governor-General of Bengal and an Executive Council (comprising four members) was created for providing assistance to the Governor-General.

Lord Warren Hastings became the first Governor-General of Bengal. The act also laid the provisions for the establishment of the Supreme Court at Calcutta with one Chief Justice and three other judges. It was established in 1774 with Sir Elijah Impey appointed as the Chief Justice.

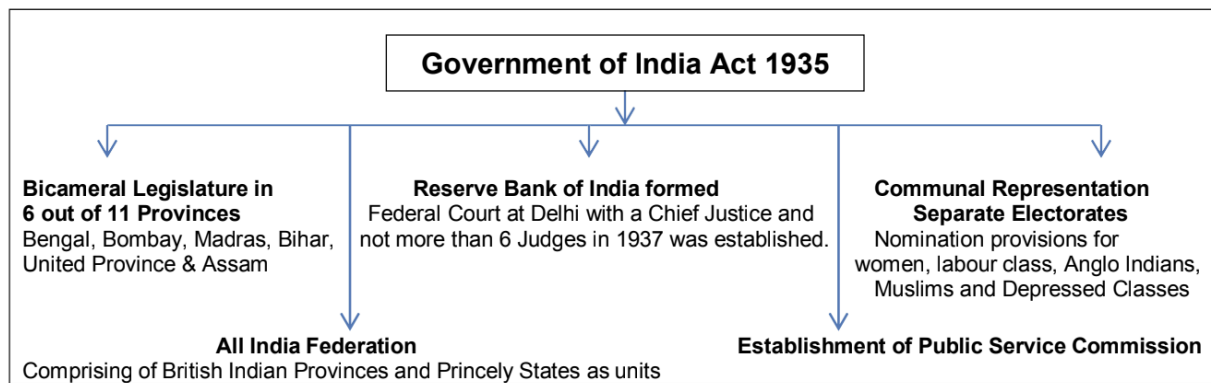
Government of India Act, 1858

The revolt of 1857 by Indians resulted in the end of East India Company rule, with all the powers of administration of Indian territory being taken by the British crown in its hands. Major provisions of the Act were :

It changed the designation of Governor-General to that of Viceroy. Viceroy was representative of the British crown.

Lord Canning became first Viceroy of India, under the Act.

It provided the Secretary of State with a 15 member council to assist him, responsible for Indian administration. He was a British Cabinet member, who was responsible to the British Parliament.



August Offer, 1940

Viceroy Linlithgow issued a statement on behalf of the British government on 8 August, 1940 called as August Offer.

Lord Linlithgow promised that after the end of second World War II, a completely responsible government on dominion model would be established in India.

It recognised the rights of Indians to make their constitution for the first time as it stated that a constitution making body would be created.

Clement Attlee's Announcement

Lord Clement Attlee made a historical announcement on 15 March, 1946 that Britain was ready to provide freedom to India, after transferring power into responsible hands not later than June 1948. All minority interests will be secured. It announced that the Cabinet mission was to visit India to assist Indians to determine a suitable form of government.

Cabinet Mission (1946)

The main objective of the Cabinet Mission plan was to find out ways and means for the peaceful transfer of power in India and to suggest measures taken for the formation of a constitution making machinery and the issue of interim government. Commission to enquire into and report on the working of Government of India Act, 1919 which submitted its report in 1930. The report was considered by a series of Round Table Conferences held at London between 1930-1932 and the White Paper on constitutional reform was prepared as a result of the Conference which was passed as Government of India Act, 1935.

Cabinet Mission comprising Lord Pethick Lawrence, Sir Stafford Cripps and Mr. Alexander arrived in India on 24th March, 1946.

Government of India Act, 1935

A union of India comprising British India and princely states thus advocating an undivided India was conceptualized.

A Constituent Assembly was to be elected and an interim government to be formed with the

support of major parties.

It also provided that all members of the interim cabinet would be Indians and there would be minimum interference by the Viceroy.

It also proposed that the Constituent assembly was to consist of 292 members from British India and 93 from Indian states.

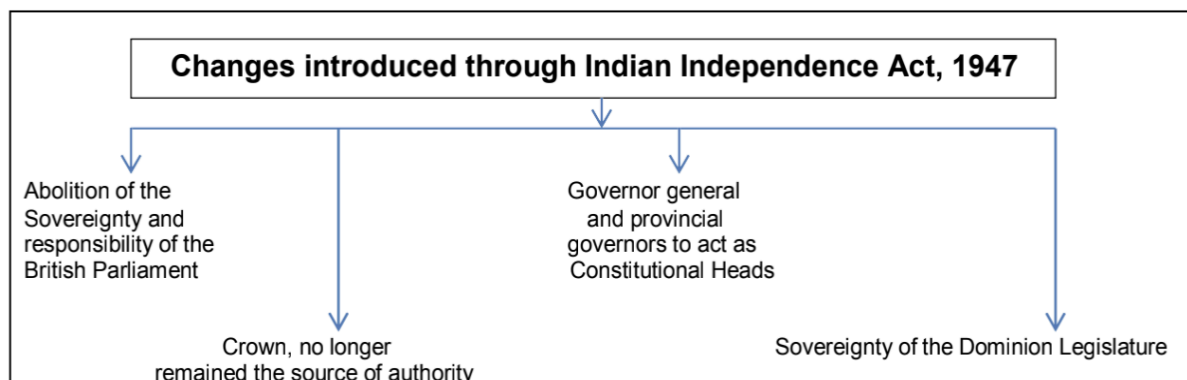
All state subjects along with residuary powers should be vested in provinces.

The proposal of Cabinet Mission was accepted and Constituent Assembly Elections were held in July, 1946.

Mountbatten Plan (3 June, 1947)

Lord Mountbatten came up with a partition plan known as Lord Mountbatten Plan (3 June, 1947) due to the Muslim league agitation for a separate country.

On 20th February, 1947, Clement Attlee declared that British rule in India would end by 30th June, 1948. But after Mountbatten Plan which put forward a plan for a United Hindustan and Pakistan which was accepted by Congress and Muslim League. Immediate effect was given to Mountbatten plan by enacting the Indian Independence Act, 1947.



Indian Independence Act, 1947

On the 15th August, 1947 (at midnight) British rule came to an end and two new dominions took powers in their hands for their respective territories.

Lord Mountbatten became first governor-general of dominion of India with J.L. Nehru as the first PM.

Framing of the Indian Constitution

There were total 389 members out of which 292 were to be elected by provinces and 93 seats were allotted to princely states, 4 for Chief Commissioners provinces. Seats in the provinces were to be distributed among three communities i.e. Muslims, Sikhs and Generals in proportion to their populations.

Finally, suggestions of Cabinet Mission (1946) were accepted and elections for the Assembly were conducted in July-August, 1946.

The Constituent Assembly elected according to the Cabinet Mission Plan for undivided India met on 9th December, 1946 with Dr. Sachchidanand Sinha as its interim President. After two days i.e. on 11th December, 1946, Dr. Rajendra Prasad was elected President of the Constituent Assembly. On 13th December, 1946 Objective Resolution was passed in constituent assembly which was introduced by Pt. Jawahar Lal Nehru.

B.N. Rau was appointed as the Constitutional adviser.

Mountbatten Plan paved the way for two nations and a separate Constituent Assembly was formed for Pakistan. Hence, the areas which went in Pakistan i.e. East Bengal, North-West Frontier Provinces (NWFP), West Punjab, Baluchistan, Sindh and Sylhet district of Assam were no more representative in the Indian Constituent Assembly. There were fresh elections in new provinces of West Bengal and East Punjab. Sylhet and NWFP decided to join Pakistan through referendum. So, when Constituent Assembly re-assembled its strength came down to 299 from 389 with 299 Indian provinces' members and 70 princely states members.

Constituent Assembly re-assembled on 14th August, 1947 as Sovereign Constituent Assembly.

Committees on the Constituent Assembly	
The Constituent Assembly appointed 22 Committees to deal with different tasks of Constitution making.	
Major Committees	Chairman
· Drafting Committee	B.R. Ambedkar
· Union Powers Committee	Pt. Jawahar Lal Nehru
· Provincial Constitution Committee	Sardar Vallabh Bhai Patel
· Steering Committee	Dr. Rajendra Prasad
· Committee on Fundamental Rights and Minorities	Sardar Vallabh Bhai Patel
· Union Constitution Committee	Pt. Jawahar Lal Nehru
· States Committee	Pt. Jawahar Lal Nehru
· Finance & Staff Committee	Dr. Rajendra Prasad

The Constituent Assembly appointed a drafting committee of 7 members on 29 August, 1947 with Dr. B.R. Ambedkar as its Chairman. Other members were: N. Gopalswami Ayyangar, Alladi Krishnaswami Ayyar, Dr. K.M. Munshi, Mohammed Sadullah, B.L. Mitter (earlier N. Madhav Rao), D.P. Khaitan (died and replaced by T.T. Krishnamachari).

The Assembly performed two separate functions. One, making a Constitution for free India

and two enacting ordinary laws for the country.

On 24 January, 1950, the Constituent Assembly held a session. However, it continued as Provisional Parliament till 1952.

Some Other Minor Committee	
Committees	Chairman
· Ad-hoc Committee on National Flag	Dr. Rajendra Prasad
· Order of Business Committee	Dr. K.M. Munshi
· Committee on the functions on the Constituent Assembly	G.V. Mavalankar

The Constituent Assembly adopted the National Flag on 22nd July, 1947 while the National Anthem and the National Song were adopted on 24th January, 1950.

The Constituent Assembly took 2 years, 11 months and 18 days to frame the Constitution and finally it was last assembled on 26th November, 1949 when the Constituent Assembly signed the constitution. 284 members signed the constitution.

26th January was chosen as a date for commencement of constitution because 26th January was observed as Independence day by people after, Congress session at Lahore on 31st December, 1929 passed a resolution of complete Independence (Purna Swaraj) and declared 26th January as day of Independence.

Important Dates			
Dates	Concerned Events	Dates	Concerned Events
9 th December, 1946	First sitting Constituent Assembly	26 th November, 1949	Constitution was adopted/enacted
11 th December, 1946	Dr. Rajendra Prasad elected President of the Constituent Assembly	24 th January, 1950	Adoption of National Song and National Anthem
13 th December, 1946	Objective Resolution was introduced by Jawaharlal Nehru	26 th January, 1950	Constitution came into force making India a Republic with Dr. Rajendra Prasad as the first President
22 nd July, 1947	Constituent Assembly adopted National Flag	25 th October, 1951- 21 st February, 1952	First general elections were held

15 th August, 1947	Transfer of Power leading to the formation of dominions of India and Pakistan (14 th August, 1947)		
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Landmark Case

Kesavananda Bharati v. State of Kerala — 1973

A landmark Supreme Court case that established the Basic Structure Doctrine: Parliament can amend the Constitution, but it cannot destroy or alter its basic structure.

It also strengthened the role of the Supreme Court as guardian of the Constitution.

Judgment delivered on 24 April 1973 by a 13-judge Constitution Bench, by a narrow 7:6 majority.

Kerala was trying to reduce inequality by introducing **land reforms**. Then government wanted to take surplus land from large landowners and redistribute it to people who had little or no land. One of the institutions affected was **Edneer Mutt**, a religious institution in Kerala headed by **Swami Kesavananda Bharati**. The Mutt owned land, and the new land reforms meant that some of its property could be taken by the government.

So, in **1970**, **Swami Kesavananda Bharati approached the Supreme Court**. Initially, the issue was quite simple: **“Can the government take away our property through these land reform laws?”**

Swami Kesavananda Bharati, challenged land reform laws affecting the Mutt's property.

The case expanded into a much bigger constitutional question: Can Parliament amend the Constitution without any limits?

The Court held that:

- Parliament can amend any part of the Constitution, including Fundamental Rights.
- But it cannot amend the Constitution in a way that destroys its basic structure.
- Examples of basic-structure features include supremacy of the Constitution, democracy, secularism, federalism, separation of powers and judicial review.

Core question: Can Parliament amend any part of the Constitution without limitation?

Supreme Court's principle: Parliament has wide power to amend the Constitution, but it cannot destroy or alter its basic structure.

Why it matters: One of the most important cases for understanding constitutional supremacy, constitutionalism and limits on government power. It is among the Supreme Court's own leading cases. (Full doctrinal detail is covered in Session 12 — Basic Structure Doctrine.)

Memory link: *Kesavananda Bharati → Basic Structure Doctrine*

Key Takeaway: The Constitution is not merely a collection of laws, it establishes the framework within which the State exercises power and citizens enjoy constitutional protections. Constitution gives power + Constitution limits power.

Think About It: If the government has power, who should decide the limits of that power?

Bonus Study

1. What is a Constitution?

A Constitution is the fundamental legal framework of a country. It establishes the basic structure of government and determines how governmental power is organised and exercised. It tells us:

- Who exercises governmental power?
- What are the powers of different institutions?
- What rights do citizens have?
- What limits exist on government power?
- How are disputes resolved?
- What principles should guide governance?

2. Why Do We Need a Constitution? (Constitutionalism)

A Constitution provides the basic framework within which a government must function. In its absence, there would be no clearly defined powers of government, no guaranteed rights for citizens, and no established procedures for making and implementing laws. This could result in arbitrary exercise of authority and uncertainty regarding the protection of individual rights. Thus, a Constitution establishes rules, institutions, rights, and limits on governmental power.

Constitutionalism is the principle that governmental authority must be exercised within the limits prescribed by the Constitution. It ensures that the government itself remains subject to constitutional rules and cannot exercise unlimited or arbitrary power.

3. Why 26 January? If the Constitution was adopted on 26 November 1949, why was it brought into force on 26 January 1950?

Answer: At the Lahore Session of the Indian National Congress in December 1929, under the presidency of Jawaharlal Nehru, the Congress adopted the goal of Purna Swaraj, or complete independence from British rule.

The Congress decided that 26 January 1930 would be observed throughout India as Independence Day. This marked a significant shift from seeking constitutional concessions from the British to demanding complete independence.

Key Figures

Person	Remember For
Dr. B. R. Ambedkar	Chairman, Drafting Committee
Dr. Rajendra Prasad	President, Constituent Assembly
Jawaharlal Nehru	Moved the Objectives Resolution

Person	Remember For
Sardar Vallabhbhai Patel	Important Constituent Assembly committees; integration of princely states
B. N. Rau	Constitutional Adviser
Dr. Sachchidananda Sinha	Temporary Chairman of the Constituent Assembly

Historical Acts — Main Contribution

Act	Main Contribution
Government of India Act, 1858	Crown rule
Indian Councils Act, 1909	Separate electorates
Government of India Act, 1919	Dyarchy in provinces
Government of India Act, 1935	Provincial autonomy, federal scheme, Federal Court

Quick Knowledge Check

1. What is meant by a Constitution?
2. Why is constitutional government different from unlimited government?
3. Give two differences between the Constitution and an ordinary law.
4. What is constitutionalism?
5. Why are Fundamental Rights relevant to the idea of limited government?

One-Minute Summary

If you can explain the topic of this session to another student in your own words, connect at least three constitutional concepts to a real-life example, and answer the Quick Check without referring to the book, you have understood the core learning of this session.